

1963 CHAPTER 4*Towyn Trewan Common Act 1963*

ARRANGEMENT OF SECTIONS

Section.

1. Extinguishment of rights of common and other rights.
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3. Compensation in respect of rights of common.
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An Act to extinguish certain rights of common, private rights of way and other rights in respect of lands forming part of Towyn Trewan Common in the county of Anglesey, and to enable certain works to be carried out on other lands forming part of the Common; to provide for compensation in respect of the extinguishment of, or interference with, the said rights of common and private rights of way; to provide for the use by the public of a track across part of the Common; to extend the powers of the Conservators of the Common; and for purposes connected with the matters aforesaid.
[28th February 1963]

WHEREAS the common lands known as Towyn Trewan Common (in this Act referred to as "the Common") in the parishes of Llanfair-yn-neubwll, Llechlched and Llanfaelog in the rural district of Valley in the county of Anglesey are regulated by an order (in this Act referred to as "the Order of 1908") made by the Board of Agriculture and Fisheries in pursuance of the Inclosure Acts 1845 to 1899 and the Board of Agriculture and Fisheries Acts 1889 to 1903 and scheduled to and confirmed by the Commons Regulation (Towyn Trewan) Provisional Order Act 1908, and by an award (in this Act referred to as "the award") made pursuant to the said Inclosure Acts for giving effect to the purposes of the Order of 1908:

And whereas the present extent of the Common is that remaining after the extinguishment by the Towyn Trewan Common Act 1950 of the rights of common formerly subsisting over part of the lands originally comprised in the Order of 1908 and the award:

And whereas provision was made by the Order of 1908 and the award for the administration of the purposes thereof by a body of Conservators appointed in accordance with the Order of 1908 (in this Act referred to as "the Conservators"):

And whereas it is expedient that such rights of common, private rights of way and rights or privileges exercisable by the public or any section of the public as subsist in respect of certain lands forming part of the Common (being lands acquired or proposed to be acquired by the Secretary of State for the defence of the realm or the purposes of Her Majesty's air force) should be extinguished by the authority of Parliament:

And whereas it is expedient to authorise the carrying out of certain works on other lands forming part of the Common, to provide for compensation in respect of the extinguishment of, or interference with, rights of common and private rights of way by virtue of this Act, and to provide for certain other matters as hereinafter mentioned:

And whereas in connection with the Bill for this Act plans and a section (in this Act referred to as "the deposited plans and section") have been deposited with the clerk of the administrative county of Anglesey and in the Office of the Clerk of the Parliaments and the Private Bill Office of the House of Commons, together with a book of reference to the deposited plans and section containing the names of the owners or reputed owners, lessees or reputed lessees, and occupiers, of the lands in respect of which rights of common and private rights of way are to be extinguished, or may (otherwise than with the permission of the Conservators) be interfered with, by virtue of this Act:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:--

1.—(1) As from the passing of this Act—

- (a) all such rights of common as immediately before the passing of this Act subsisted in or over any part of the land to which this section applies, and
- (b) all such rights or privileges of access, recreation or playing games as immediately before the passing of this Act were exercisable by the public or any section of the public in respect of any part of that land, and
- (c) all duties, powers and rights of the Conservators in respect of that land,

Extinguish-
ment of
rights of
common and
other rights.

are hereby extinguished, and the Order of 1908 and the award shall have effect as if the land to which this section applies did not form part of the Common.

(2) The land to which this section applies is the land delineated on Sheet No. 1 of the deposited plans and section and shown thereon as the land in respect of which rights are to be extinguished by this Act.

(3) In this Act "rights of common", in relation to any land, means all such rights as, on a compulsory acquisition of that land under an enactment incorporating all the provisions of the Lands Clauses Consolidation Act 1845, would (subject to compliance with the requirements of that Act) be capable of being extinguished by virtue of section 99 or section 107 of that Act.

Provision for
new drain and
accessory
works.

2.—(1) For the purpose of carrying away storm water from the land to which the preceding section applies, the Secretary of State is hereby authorised to lay a drain, in accordance with the next following subsection, and to construct manholes and other works accessory thereto, and from time to time to maintain, repair, renew or remove the drain or any such works, notwithstanding that the doing of anything authorised by this subsection involves interference with the exercise of any rights of common or rights or privileges of the public or any section of the public or any duties, powers or rights of the Conservators.

(2) The said drain shall be laid in the position shown on Sheet No. 2 of the deposited plans and section and according to the level shown on the section contained in that sheet:

Provided that in laying the drain the Secretary of State—

(a) may deviate laterally from the position shown on Sheet No. 2 of the deposited plans and section to the extent of the limits of deviation so shown, and

(b) may deviate from the level shown on the section contained in that sheet to any extent not exceeding one foot.

(3) Nothing in this section shall be construed as authorising any act or omission which is actionable at the suit of any person on any grounds other than such an interference as is mentioned in subsection (1) of this section.

Compensation
in respect of
rights of
common

3.—(1) Compensation shall be payable by the Secretary of State in respect of—

(a) the extinguishment of rights of common by section 1 of this Act, and

(b) the acquisition by the Secretary of State of the right to interfere with the exercise of rights of common by virtue of the last preceding section.

(2) The provisions of sections 101 to 107 of the Lands Clauses Consolidation Act 1845, in so far as they relate to the determination of the amount of any compensation, or to the payment, apportionment, application or deposit of any compensation, shall (with the necessary modifications) have effect with

respect to any compensation payable by virtue of this section, as if the Secretary of State were the promoters of the undertaking within the meaning of that Act.

(3) Section 22 of the Inclosure Act 1852, sections 15 to 20 of the Inclosure Act 1854, and section 2 of the Commonable Rights Compensation Act 1882 (which make provision respectively for the application of compensation money paid for extinguishment of rights of common) shall apply (with the necessary modifications) to any compensation payable by virtue of this section.

(4) For the purpose of determining any question of title arising in consequence of the preceding provisions of this section, the Secretary of State may refer that question to one of the conveyancing counsel of the High Court for his opinion; and, where any question is so referred in pursuance of this subsection, the opinion of the counsel to whom it is referred shall for the purposes of this Act be conclusive and binding on all persons concerned:

Provided that, if a committee is appointed under section 103 of the Lands Clauses Consolidation Act 1845 as applied by subsection (2) of this section, the Secretary of State shall not refer any question in pursuance of this subsection except where requested to do so by or on behalf of that committee.

(5) The costs and expenses of and incidental to the reference of any question under the last preceding subsection shall be paid by the Secretary of State.

4.—(1) All private rights of way over any part of the land to which section 1 of this Act applies are hereby extinguished.

Extinguishment of private rights of way.

(2) If, on a claim made to the Secretary of State within the period of one year beginning with the passing of this Act, it is shown that any person entitled to such a right of way has suffered loss or damage in consequence of the coming into operation of the preceding subsection, the Secretary of State shall pay to that person compensation in respect of that loss or damage.

(3) Any question of disputed compensation under this section shall be referred to and determined by the Lands Tribunal; and the provisions of sections 2 and 4 of the Land Compensation Act 1961 shall apply (with the necessary modifications) in relation to the determination of any such question.

5.—(1) The provisions of this section shall have effect with respect to the track shown and coloured brown on Sheet No. 1 of the deposited plans and section (in this section referred to as "the track"), being a track leading from the western end of the bridge over the River Crigyll and ending at the Trewan Sands crossing over the railway:

Use by the public of track from river bridge to level crossing.

Provided that the provisions of this section shall not have effect with respect to any part of the track which is not for the

time being vested in the Secretary of State, unless (whether by agreement or in the exercise of any power conferred by or under an enactment) the Secretary of State has previously entered upon and taken possession of the land comprising that part of the track.

(2) In so far as the provisions of this section have effect with respect to the track, the Secretary of State shall permit the public—

- (a) to use the track at all times for the purpose of passing and repassing along it on foot, with or without animals of any description, and
- (b) to use the track, with the consent of the officer commanding the airfield and subject to such limitations and conditions as he may impose, for the purpose of driving vehicles along the track.

(3) The obligation of the Secretary of State under the last preceding subsection shall be subject to the exercise of any of the powers of the Gwynedd River Board or of any other authority required or authorised by or under any enactment to perform any functions in relation to the River Crigyll.

(4) In this section "the airfield" means the airfield established by the Secretary of State and situated mainly on lands which, immediately before the passing of the Towyn Trewan Common Act 1950, were comprised in the Order of 1908 and the award, and "vehicle" includes any machine or implement used for agricultural purposes, whether self-propelled or hauled by another vehicle, and the reference to driving vehicles shall be construed accordingly.

Power for
Conservators
to permit
additional
works.

6.—(1) Where it is represented to the Conservators by the Secretary of State that, in connection with the use for the defence of the realm or for the purposes of Her Majesty's air force of any land acquired or proposed to be acquired by him, additional works are required on any part of the Common to which this section applies, the powers of the Conservators under the Order of 1908 shall include power, with the consent of the owners of the soil of that part of the Common, to permit the Secretary of State to construct and use those works and from time to time to maintain, repair, renew or remove them.

(2) This section applies to every part of the Common, except that part in respect of which the rights of common are extinguished by section 1 of this Act.

(3) The powers of the Conservators under the Order of 1908 shall also include power to receive pecuniary consideration in respect of the construction and use of any additional works permitted by them in pursuance of this section; and any such consideration received by the Conservators shall be applied by them for the purposes of the improvement or protection of other parts of the Common to which this section applies.

(4) For the purposes of section 194 of the Law of Property Act 1925 (which restricts the erection or construction of works which would impede access to land which at the commencement of that Act was subject to rights of common) anything done in pursuance of permission given by the Conservators, in the exercise of the powers conferred by the Order of 1908 as extended by this section, shall be taken to be specially authorised as mentioned in subsection (4) of that section (whereby certain works, including works specially authorised by or under an Act, are excepted from the operation of the section).

(5) In this section "additional works" means any of the following, that is to say—

- (a) pipes and drains, other than the drain referred to in section 2 of this Act, and works in connection with such pipes and drains;
- (b) electrical apparatus, electric lines (within the meaning of the Electric Lighting Act 1882) and works in connection therewith;
- (c) means of access (whether for vehicles or for foot passengers) to land in the occupation of the Secretary of State,

and any reference to the construction of additional works shall be construed accordingly.

7. Any expenses incurred by the Secretary of State in consequence of the provisions of this Act shall be defrayed out of moneys provided by Parliament. Expenses.

8. This Act may be cited as the Towyn Trewan Common Act 1963; and the Towyn Trewan Common Act 1950 and this Act may be cited together as the Towyn Trewan Common Acts 1950 and 1963. Short title and citation.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Land Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Inclosure Act 1852	15 & 16 Vict. c. 79.
Inclosure Act 1854	17 & 18 Vict. c. 97.
Commonable Rights Compensation Act 1882	45 & 46 Vict. c. 15.
Electric Lighting Act 1882	45 & 46 Vict. c. 56.
Law of Property Act 1925	15 & 16 Geo. 5. c. 20.
Towyn Trewan Common Act 1950	14 Geo. 6. c. xli.
Land Compensation Act 1961	9 & 10 Eliz. 2. c. 33.